

Niravkumar S/O Champaklal Vallabhdas ... vs Khushbuben D/O Nareshbhai Amrutlal ... on 28 September, 2022

Author: Sonia Gokani

Bench: Sonia Gokani

C/FA/1351/2019

ORDER DATED: 28/09/2022

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/FIRST APPEAL NO. 1351 of 2019

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NIRAVKUMAR S/O CHAMPAKLAL VALLABHDAS BHAVSAR

Versus

KHUSHBUBEN D/O NARESHBHAI AMRUTLAL SONI

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Appearance:

MR ASHISH M DAGLI(2203) for the Appellant(s) No. 1

MR DHARMESH R PATEL(5592) for the Defendant(s) No. 1

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CORAM:HONOURABLE MS. JUSTICE SONIA GOKANI

and

HONOURABLE MS. JUSTICE NISHA M. THAKORE

Date : 28/09/2022

ORAL ORDER

(PER : HONOURABLE MS. JUSTICE SONIA GOKANI)

1. The present appeal has been preferred by the appellant-husband challenging the judgment and decree dated 10.01.2019 passed by the Family Court in the Family Suit No.08 of 2017, by which, the learned Family Court allowed the suit filed by the respondent-wife for divorce and dissolved the marriage. It emerges from the record that the marriage between the parties was solemnized in the year 2001, and out of the said wedlock, a daughter was born, namely, Chitra who is, at present, eighteen years of age and is studying in the first year of college.

1.1 It appears that over a period of time, matrimonial C/FA/1351/2019 ORDER DATED: 28/09/2022 disputes arose between the appellant and the respondent and, therefore, the respondent-wife approached the Family Court by filing Family Suit No.08 of 2017, seeking a decree for dissolution of marriage under section 13(1)

(a) of the Hindu Marriage Act. The learned Family Court, after bi-partie hearing, vide its order dated 10.01.2019, allowed the suit and passed a decree for dissolution of the marriage in favour of the respondent-wife. The learned Judge also awarded a sum of Rs.10,00,000/- in favour of the respondent-wife and another sum of Rs.10,00,000/- to the daughter, aggregating to Rs.20,00,000/- by way of permanent alimony towards their maintenance. The said amount was directed to be deposited before the Trial Court.

1.2 Being aggrieved, the appellant-husband has come up with this appeal. The appellant-husband has also filed an application, seeking stay of the operation, implementation and execution of the judgment and decree dated 10.01.2019 passed by the Family Court, and a Coordinate Bench of this Court, on 19.08.2019, passed the following order;

"Though Notice is served to respondent none has appeared. Hence Rule.

[1] The present application is filed by the applicant for stay of the operation, implementation and execution of judgment and decree dated 10.1.2019 of Divorce passed C/FA/1351/2019 ORDER DATED: 28/09/2022 by learned Family Court Aravalli, Modasa in Family Suit No. 8/2017.

[2] Heard Mr. Ashish Dagli, learned advocate for the applicant. Though notice to the respondent has been duly served, no one has appeared for respondent.

[3] This Court has come across the following judgments wherein the Hon'ble Supreme Court has dealt with Section 15 of the Hindu Marriage Act.

In a decision in case of Anurag Mittal v. Shaily Mishra Mittal, reported in (2018) 9 SCC 691, the Supreme Court has dealt with Section 15 as follows:

"27. Section 15 of the Act provides that it shall be lawful for either party to marry again after dissolution of a marriage if there is no right of appeal against the decree. A second marriage by either party shall be lawful only after dismissal of an appeal against the decree of divorce, if filed. If there is no right of appeal, the decree of divorce remains final and that either party to the marriage is free to marry again. In case an appeal is presented, any marriage before dismissal of the appeal shall not be lawful. The object of the provision is to provide protection to the person who has filed an appeal against the decree of dissolution of marriage and to ensure that the said appeal is not frustrated. The purpose of Section 15 of the Act is to avert complications that would arise due to a second marriage during the pendency of the appeal, in case the decree of dissolution of marriage is reversed. The protection that is afforded by Section 15 is primarily to a person who is contesting the decree of divorce.

In a decision in case of Prakash Chand Sharma v.

C/FA/1351/2019 ORDER DATED: 28/09/2022 Vimlesh, reported in 1995 4 SCC 642, the Supreme Court has held that:

4. However, Mr. Pramod Swarup, the learned counsel for the appellant husband, vehemently submitted that having regard to the fact that both the parties have drifted from married life the marriage must be taken as irretrievably broken, more so because the husband has remarried and has a child. We do not think that in the facts and circumstances of the case such a view can be taken. From the very beginning the wife has been saying that she is ready and willing to live with the husband. It is the husband who is denying her access. If the husband remarried in haste after the institution of the second appeal which was delayed by only three days, we cannot see how that fact can come to his rescue. That is clearly opposed to Section 15 of the Hindu Marriage Act which in terms states that when a marriage is dissolved by a decree of divorce and there is no right of appeal against the decree or where there is such a right, the time for filing an appeal has expired or an appeal has been presented and has been dismissed, it shall be lawful for either party to the marriage to remarry. In the instant case no doubt the second appeal was delayed by three days but the fact is that it was instituted and was pending on the date of the second marriage. Therefore, the husband acted in disregard to Section 15 and cannot get the benefit of his own wrong.

In a decision in case of Lata Kamat v. Vilas, reported in 1989 Lawsuit (SC) 185, the Supreme Court has held that:

"4. Against this the appellant preferred a second appeal before the High Court. The High Court by its judgment dated 20.2.1987 C/FA/1351/2019 ORDER DATED: 28/09/2022 dismissed the appeal holding that as the appeal was filed by the appellant after the remarriage of the respondent it has become infructuous. The learned Judge also dismissed the application for maintenance pendente lite and aggrieved by this judgment of the High Court after obtaining leave this appeal is filed in this Court.

7. In order to understand the meaning of Sec. 15 of the Act it would be better if we first notice that the words 'decree for divorce' or 'decree for nullity' has not been defined in any one of the provisions of this Act. Sec. 12 clause (1) of the Act reads:

"Any marriage solemnized, whether before or after the commencement of this Act, shall be voidable and may be annulled by a decree of nullity on any of the following grounds namely, xxxxxxxx xxxxxxxx Similarly Sec. 13 clause (1) of the Act reads:

(1) Any marriage solemnized, whether before or after the commencement of this Act may, on a petition presented by either the husband or wife, be dissolved by a decree of divorce on the ground that the other party,

9. The decisions of the High Court on which reliance is placed by courts below and the learned counsel for the respondent are: i) Mohanmurari (AIR 1965 Madh Pra 194), ii) Jamboo Prasad Jain (AIR 1979 ALL 260) and Pramod Sharma (AIR 1976 Punjab 355). In none of these decisions the impact of the fight of appeal occurring in S.15 in view of the language of S.28 where the right of appeal is C/FA/1351/2019 ORDER DATED: 28/09/2022 conferred, has been considered. In our opinion, therefore the view taken by the High Court is not correct. What S.15 means when it uses the phrase 'has been dissolved by decree of divorce'?

It only means where the relationship of marriage has been brought to an end by intervention of court by a decree, this decree will include a decree under Ss. 11, 12 or 13 and therefore the view taken by all the courts below is not sustainable. The contention of the learned counsel for the appellant has to be accepted so far as this question is concerned.

12. The Schedule in the Limitation Act do not provide for an appeal, under the Hindu Marriage Act but it is only provided in clause (4) of S. 28 of the Hindu Marriage Act. Thus the limitation provided in clause (4) of S.28 is different from the Schedule of the Limitation Act. Accordingly to clause (2) of S.29, provisions contained in Ss.4 to 24 will be applicable unless they are not expressly excluded. It is clear that the provisions of the Act do not exclude operation of provisions of Ss. 4 to 24 of the Limitation Act and therefore it could not be said that these provisions will not be applicable. It is therefore clear that to an appeal under S. 28 of the Hindu Marriage Act, provisions contained in S. 12 clause (2) will be applicable, therefore the time required for obtaining copies of the judgment will have to be excluded for computing the period of limitation for appeal. A Division Bench of Delhi High Court in Chandra Dev Chadha's case held as under:

"The Hindu Marriage Act is a special law. That this "special law" prescribes" for an appeal a period of limitation is also evident. The period of C/FA/1351/2019 ORDER DATED: 28/09/2022 limitation is 30 days. It is a period different from that prescribed in the First Schedule to the Limitation Act, 1963. But when we turn to the First Schedule we find there is no provision in the First Schedule for an appeal against the decree or order passed under the Hindu Marriage Act. Now it has been held that the test of a "prescription of a period of limitation different from the period prescribed by the First Schedule"

as laid down in S. 29(2), Limitation Act, 1963 is satisfied even in a case where a difference between the special law and Limitation Act arose by omissions to provide for a limitation to a particular proceeding under the Limitation Act, see, Canara Bank, Bombay v. Warden Insurance Co. Ltd. Bombay, AIR 19 53 Bom 35 (supra) approved by the Supreme Court in Vidyacharan Shukla v. Khubchand, AIR 1964 SC 1099 (1102).

Once the test is satisfied the provisions of Ss, 3, 4 to 24, Limitation Act, 1963 would at once apply to the special law. The result is that the court hearing the appeal from the decree or order passed under the Hindu Marriage Act would under S.3 of the Limitation Act have power to dismiss the appeal if made after the period of limitation of 30 days prescribed thereof by the special law. Similarly under

S.5 for sufficient cause it will have the power to condone delay. Likewise under S.12(2) the time spent in obtaining a certified copy of the decree or order appealed from will be excluded. If it is so, S. 12(2) of the Limitation Act is attracted, and the appellants in all the three appeals will be entitled to exclude the time taken by them for obtaining certified copy of the decree and order. The appeals are, therefore, within time."

Similar is the view taken by the Calcutta High Court in Smt. Sipra Dey's case and also the M.P. C/FA/1351/2019 ORDER DATED: 28/09/2022 High Court in Kantibai's case. It is therefore clear that the contention advanced by the learned counsel for the respondent on the basis of the Limitation Act also is of no substance.

13. Consequently the appeal is allowed. The judgment passed by the High Court as well as by the first appellate court is set aside. We remand the matter back to the first appellate court as that court had disposed of the appeal treating it to have been rendered infructuous. We therefore direct that the learned IInd Additional District Judge, Nagpur before whom the appeal was filed, will hear the appeal on merits and dispose it of in accordance with law."

[4] Appeal filed by the appellant is already admitted vide order dated 10.6.2019. Considering the submissions advanced by the learned advocate for the parties, averments made in the present application, facts and circumstances of the case, ratio laid down in above referred judgment of Hon'ble Supreme Court, and in view of Section 15 read with Section 28 of the Hindu Marriage Act, 1995, present application deserves to be allowed.

[5] Accordingly, the operation, implementation and execution of judgment and decree dated 10.1.2019 of Divorce passed by learned Family Court Aravalli, Modasa in Family Suit No. 8/2017, is ordered to be stayed till final disposal of the present first appeal.

[6] The application stands disposed of accordingly.

Rule is made absolute to the aforesaid extent. "

2. When the matter came up for final hearing before C/FA/1351/2019 ORDER DATED: 28/09/2022 this Court, this Court deemed it fit to refer the matter to the High Court Mediation Center for exploring the possibility of some amicable settlement and also directed the Registry to place the copy of the report of the Mediation Center before this Court. Accordingly, the report forwarded by the In-Charge Coordinator, High Court Mediation Center is placed before this Court today which is very clear that the mediation has been successful and the parties have amicably resolved the disputes.

2.1 A Memorandum of Understanding has been arrived at between the parties, which reads thus;

"This memorandum of understanding has been executed between Niravkumar s/o. Champaklal Vallabhdas Bhavsar, residing at 44, Shym Nagar, Opp I.T.I., Malpur Road, MODASA, DISTRICT- ARVAVALLI and Khushbuben d/o. Nareshbhai Amrutlal Soni residing at Mayur Shpping Centre, Opp. Town Police Line, MODASA, TALUKA:ARVALLI. The marriage between the applicant Niravkumar and Khushbuben was solemnized on 18.12.2002. Both the parties were residing together as husband and wife and thereafter they separated from December, 2016. Out of this marriage daughter namely 'Chitra' was born on 25.07.2005. As the disputes and difference had arisen between the parties hereto. This Hon'ble High Court of Gujarat at Ahmedabad vide order dated 27.07.2022 in Civil Application (For Direction) No.1 of 2021 in above referred appeal had referred the above matter to the Gujarat High Court Mediation Centre and Mr. G.D. Acharya, Advocate has been appointed as Member in this matter.

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2. Comprehensive mediation sessions were held with the parties and advocate on various dates.

3. That with the indulgence of the Mediator and the counsels and the parties, the parties have agreed and decided to resolve their disputes amicably and accordingly this memorandum of understanding is being executed in the presence of the Mediator and the parties.

4. The parties have agreed and decided that they cannot live together as husband and wife and therefore they shall live separately forever and put an end to their matrimonial ties.

5. The terms and conditions of memorandum of understanding are stated here under;

(A) Both the parties have agreed that husband Mr. Niravkumar shall pay Rs.20,00,000/- (Rs. Twenty Lacs Only) towards full and final settlement for the maintenance for both i.e. wife and daughter as per details given under.

Appellant-Husband shall deposit Rs.20,00,000/- (Rupees Twenty Lacs Only) towards the maintenance as mentioned above on or before 23.09.2022 in the High Court of Gujarat by way of account payee cheque in favour of 'The Registrar, High Court of Gujarat' at Ahmedabad. The receipt of payment made by the husband shall be handed over to the advocate of the Respondent-wife.

(B) After the amount of Rs.20,00,000/- (Rupees Twenty Lacs Only) paid by the Appellant-Husband in the High Court of Gujarat at Ahmedabad, the Appellant-husband will withdraw First Appeal No.1351 of 2019 filed by him by making an appropriate prayer. Hence, the divorce granted by the court below shall be confirmed.

C/FA/1351/2019 ORDER DATED: 28/09/2022 (C) The Respondent-wife will be eligible for withdrawal of Rs.20,00,000/- (Rupees Twenty Lacs Only) after the order of withdrawal of First Appeal No.1351 of 2019 is passed and certified copy of this order produced before the Hon'ble Registrar, Gujarat High Court at Ahmedabad and after withdrawing Criminal Revision Application No.1121 of 2018 filed by husband and also withdrawing Criminal Revision Application No.157 of 2022 filed by wife.

(D) Both the parties have also accepted that they will have no claim whatsoever in future with regard to their movable and immovable properties of their respective family members, in relation to this matrimonial alliance.

(E) The parties state that nothing remains to be exchanged henceforth between them since all the disputes relating to the articles relating to Streedhan of wife and all the documents of wife are also settled under this agreement. Hence, now there is no dispute about the same and petitioner husband and respondent wife will not raise any dispute with regard to whatever gold, silver and all other valuables including streedhan articles and documents.

(F) The Appellant-husband and Respondent-wife shall withdraw applications/plaints if any before any other court or authority.

(G) Both the parties have agreed that custody of daughter 'CHITRA' shall remain with her mother i.e. Khushbuben and she will be fully responsible for her care and well being including marriage expenses and wife Khushbuben will not make any demand/claim of maintenance for the daughter from her husband.

C/FA/1351/2019 ORDER DATED: 28/09/2022 (H) The parties agreed to withdraw all allegation/application/cases/complaints made by them against each other and their family members, in relation to this matrimonial alliance and they will not press for their respective prayers passed in them. In cases of breach of terms both the parties shall have the liberty to revive/press their respective applications and claims/orders made in them.

(I) It is agreed that the parties shall not claim any rights under any head or in any form against each other. All the disputes between the parties herein above stands settled by executing this memorandum of agreement and both the parties are bound to follow the terms of this memorandum of agreement strictly.

(J) The parties hereby declare that they will abide by terms and conditions set out hereinabove in this memorandum of understanding and cooperate each other to dissolve their marriage. In case of breach of above terms by the husband or by the wife, they shall have liberty to revive the cases.

(K) The parties have voluntarily settled all the disputes amicably without any coercion, understood the contents of terms of settlement and have put their signatures on the same.

(L) Both the parties to this proceeding would pray to the Hon'ble Court to pass appropriate orders in terms of the consent terms arrived at between them in the above referred applications.

(M) The terms of the settlement are explained and interpreted in Gujarati to both the parties and then recorded their consent and they have put their signatures voluntarily as a token of having accepted the same before the Mediator appointed by the C/FA/1351/2019 ORDER DATED: 28/09/2022 Mediation Centre of the Hon'ble High Court of Gujarat at Ahmedabad on 05th August day of 2022.

Signed on this 5th day of August, 2022 at Ahmedabad."

3. From the above, it is clear that the disputes between the parties have been amicably settled on the condition that both the parties shall withdraw all the pending litigations instituted by them against each other including the criminal complaints and the custody of the daughter shall remain with her mother, i.e, the respondent-wife and also on the condition that the appellant-husband shall deposit an amount of Rs.20,00,000/- before the Registry of this Court and the said amount shall be withdrawn by the respondent-wife after withdrawing the Criminal Revision Application No.157 of 2022 filed by her. The appellant-husband also undertakes to withdraw the Criminal Revision Application No.1121 of 2018 filed by him.

4. We have heard learned advocates appearing for both the sides. We are given to understand that the amount of Rs.20,00,000/- has yet not been deposited by the husband and, as per the statement made by the learned advocate for the appellant, the same shall be deposited today itself by way of a cheque. Once the said amount is deposited with the Registry, the Registry shall disburse Rs.10,00,000/- in favour of the respondent wife through C/FA/1351/2019 ORDER DATED: 28/09/2022 RTGS and the remaining amount of Rs.10,00,000/- shall be invested in a Fixed Deposit in the name of daughter 'Chitra' till she attains the age of majority, and on her attaining the age of majority, the said amount shall be transferred to her account through RTGS . The details of the account of the daughter Chitra shall be provided by the learned advocate appearing for the respondent-wife to the Registry by way of a pursis. The parties shall also withdraw the respective litigations instituted by them against each other, and in case of any default in doing so by either side, the same shall be construed as withdrawn as per the terms and conditions of the MOU. Hence, the decree passed by the Trial Court, in wake of this compromise, is well-founded and, therefore, does not warrant any interference.

5. With the aforesaid observations, present appeal stands disposed of. Civil Application, if any, also stands disposed of.

(SONIA GOKANI, J) (NISHA M. THAKORE,J) Vahid